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## Appeal Decision

Site visit made on 8 September 2026

**by K Allen MEng (Hons) MArch PGCert ARB RIBA**

an Inspector appointed by the Secretary of State

Decision date: 14<sup>th</sup> September 2026

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### Appeal Ref: 6011253

#### Land adjacent 8 Bedford Road, Cople, Bedfordshire MK44 3TP

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant permission in principle.
  - The appeal is made by Mr Iftikhar Ahmed of Hasan Properties Luton Limited against the decision of Bedford Borough Council.
  - The application Ref is 26/00830/PIP.
  - The development proposed is a residential development, comprising a minimum of 1 and a maximum of 9 self-build/custom dwellings.
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### Decision

1. The appeal is allowed and permission in principle is granted for residential development comprising a minimum of 1 and a maximum of 9 Self and Custom Build dwellings at Land adjacent 8 Bedford Road, Cople, Bedfordshire MK44 3TP in accordance with the terms of the application, Ref 26/00830/PIP.

### Preliminary Matters

2. The Government published a revised version of the National Planning Policy Framework (the Framework) on 17 August 2026. The main parties have had the opportunity to comment on the implications of these changes for the appeal, and I have taken it into account in coming to my decision.
3. Both the application and appeal form only provide the name of the agent. The name as above has been confirmed by the appellant.
4. The proposal is for permission in principle. Planning Practice Guidance (PPG) advises that this is an alternative way of obtaining planning permission for housing-led development. The permission in principle consent route has 2 stages: the first stage (or permission in principle stage) establishes whether a site is suitable in-principle and the second (technical details consent) stage is when the detailed development proposals are assessed. This appeal relates to the first of these 2 stages.
5. The scope of the considerations for permission in principle is limited to location, land use and the amount of development permitted. All other matters are considered as part of a subsequent Technical Details Consent application if permission in principle is granted. I have determined the appeal accordingly.

### Main Issue

6. The main issue is whether the site is suitable for residential development, having regard to its location, the proposed land use and the amount of development.

## Reasons

7. Policy 3S and 4S of the Bedford Borough Council Local Plan 2030 (January 2020) (LP) set out the spatial strategy for the area, including the distribution of housing development, with development largely focussed on urban areas. Nevertheless, Framework Policy S5(j) broadly accords with LP Policy 7S where it supports development in the countryside where it is physically well-related to an existing settlement.
8. The parties agree that the appeal site is within the countryside; the immediate area is rural, characterised by low-density residential and commercial development fronting Bedford Road, dispersed between open fields. The appeal site comprises a portion of a wider field of scrub, accessed via a track to the east with trees and hedgerows on the remaining sides. Although Cople and Willington are nearby and visible to the east and west, the appeal site physically relates most closely to the open countryside.
9. The proposal would introduce dwellings in a backland position to the rear of a small group of dwellings, at odds with the existing road fronting pattern of development. Despite the proximity of Cople, the development of this plot with 1-9 dwellings and associated features, including areas of hardstanding, would urbanise the plot. Notwithstanding the final design or amount of development, the proposal would extend the existing built form to the south, encroaching on open countryside, diminishing the contribution that the appeal site makes to the area's dispersed, low-density appearance and harming the rural character of the area.
10. The Council asserts that part of the site would be at risk from surface water flooding, however the area at risk appears to be within the blue rather than red lines. Further, the council accepts that only part of the appeal site comprises Grade 1 agricultural land. Given the overall size of the site and the potential range in numbers of dwellings, I am satisfied that an acceptable layout, with regards to the loss of the best and most versatile agricultural land and current and future flood risk, could be agreed and as such I am satisfied that a flood risk assessment and detailed survey of land quality could be provided at technical consent (TDC) stage.
11. Whilst I note the findings of the previous appeal<sup>1</sup>, the circumstances are materially different in that the number of dwellings would be substantially lower in the scheme before me. I do not consider that the proposal would generate a significant amount of movement, in relation to the volume of traffic which currently utilises Bedford Road. Therefore, in relation to the scale of the proposal, I consider that a sufficient range of services and facilities, including a garden centre, café and convenience store would be within walking and cycling distance. Moreover, a regular bus service between Bedford and Biggleswade would be available, providing access to additional services and facilities as well as employment opportunities.
12. Nevertheless, overall, I conclude that the appeal site is not suitable for residential development having regard to its location, the proposed land use and the amount of development. The proposal would be contrary to LP Policies 3S, 4S, 7S, 28S, 29 and 30 and Framework Policies S5 and N2 where they require development to

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<sup>1</sup> Appeal Ref: APP/K0235/W/18/3216849

be of a high-quality design, considering landscape setting and physically well related to an existing settlement.

13. Similarly, there would be conflict with Policies RC1, NE1 and SD1 of the Cople Neighbourhood Plan 2024-2035 (March 2026) where they collectively seek to ensure that development relates to the existing pattern of development and respects the rural character of Cople and its surroundings.
14. For the avoidance of doubt, the proposal would accord with policies 2S, 29, 53, 46S, 92 and 93 of the LP and Policies TR3, N2, F5 and F7 where they require that development is accessible, with a range of sustainable transport options, retain the best and most versatile agricultural land where possible and is adequate in terms of flood risk and drainage.

### **Other Matters**

15. Section 2A of the Self-build and Custom Housebuilding Act 2015 indicates that an authority must give development permission for the carrying out of self-build and custom housebuilding on enough serviced plots of land to meet demand in the authority's area.
16. LP Policy 59S states that the Council will support self-build and custom build housing developments. Nevertheless, the Council acknowledge there is currently a deficit of self-build plots when considering demand. This indicates that the spatial strategy is not leading to enough suitable permissions to meet demand for self-build and custom housing.
17. The PPG is clear that it is not possible for conditions to be attached to the grant of permission in principle or for planning obligations to be secured at this stage. Notwithstanding this, at the technical details consent stage the Council could ensure that the proposed housing meets the definition of self-build and custom housebuilding dwellings as set out in the 2015 Act. Moreover, Section 2A of the 2015 Act defines development permission as either planning permission or permission in principle. This establishes that permission in principle applications could be used to secure self-build and custom housebuilding.
18. Section 70 of the Town and Country Planning Act 1990 and the PPG are clear that an application for technical details consent must be in accordance with the permission in principle specified by the applicant. Given the applicant sought permission for "Self-build/Custom Dwellings", it would be necessary for any technical details consent application to demonstrate that the dwellings would be secured as self and custom build dwellings. Therefore, I am satisfied that in this instance a grant of permission in principle would not allow the construction of any other housing types.
19. The appellant suggests that the proposal would make better use of underutilised land. Whilst the site does not have any built development, I have no evidence before me to suggest that it is currently underutilised, with no active use. Similarly, I have no substantiated evidence before me which indicates that local infrastructure cannot accommodate the proposed development or that adequate service connections would not be possible.
20. The appeal site is within an area of archaeological interest with a Romano-British settlement south of Willington in proximity. In so far as is relevant to the appeal,

the settlement draws significance from its age, diversity of structures, the extent of the surviving deposits and its potential to provide insight into Roman Britain. Previous archaeological field evaluations which cover the appeal site set out largely negative results. As such, I am satisfied that the proposal would not harm the significance of designated or non-designated heritage assets.

21. Concerns have been raised regarding the access. Whilst there are no formally designated passing places or pedestrian footpath, the track is straight with clear visibility, and I am satisfied that the width would be sufficient for two cars to pass at low speeds. There are ample visibility splays at the junction with Bedford Road and further details could be secured at TDC.
22. Whilst I acknowledge that the site and its surrounds may well be capable of supporting ecology and protected species. The proposal would not affect any European Habitat Sites and further details pertaining to biodiversity, ecology and protected species could be secured at TDC.
23. There would be some disruption associated with the construction, however due to the modest scale of the proposal this would be limited in severity and length. Moreover, a construction management plan could be secured by condition at TDC which would limit and control the effects.

### **Planning Balance**

24. The Council can only demonstrate a 3.35 year housing land supply, this demonstrates a significant shortfall in deliverable housing. The Framework seeks to boost the supply of housing. The proposal would provide up to 9 additional dwellings. Even one dwelling would make a valuable contribution to the local housing supply. The proposal would also contribute to the provision of self and custom build dwellings.
25. In addition, short term employment would be provided during the construction and in the long term the future occupiers would benefit the local economy and community through additional local spending and support for local services and facilities. Overall, I ascribe substantial weight to these benefits.
26. Weighed against this, the Framework requires that development responds to its context, so that it integrates with and enhances its surroundings; such as through the arrangement of development plots and buildings. I have concluded that the proposal would urbanise the appeal site to the detriment of the low-density rural character of the area. Nevertheless, the harm resulting from a single dwelling would be considerably less than that of nine dwellings with the final design agreed at TDC.
27. Overall, when assessed against the national decision-making policies in the Framework, the benefits of the proposal would substantially outweigh the adverse effects.

### **Conditions**

28. The PPG makes it clear that it is not possible for conditions to be attached to a grant of permission in principle, whose terms may only include the site location, type and amount of development. Therefore, I have not imposed any conditions.

## **Conclusion**

29. For the reasons given above, I find that the proposal would conflict with the development plan when it is read as a whole, but there are material considerations which indicate that planning permission should in this case be granted other than in accordance with the development plan. I therefore conclude that the appeal is allowed.

*K Allen*

INSPECTOR